any bankrupt or insolvent system professes to summon the creditors before some tribunal, to show cause against granting a discharge to the bankrupt. But on what principle can a citizen of another state be forced into the courts of a state for this investigation? The judgment to be passed, is to prostrate his rights; and on the subject of those rights, the constitution exempts him from the jurisdiction of the state tribunals, without regard to the place where the contract may originate." In *Ogden* v. *Saunders:* "A bankrupt or insolvent law of any state, which discharges both the person of the debtor and his future acquisitions of property, is not a law impairing the obligation of contracts, so far as respects debts contracted subsequently to the passage of the law. But a certificate of discharge cannot be pleaded in bar of an action brought by a citizen of another state, in the courts of the United States; or of any other state than that where the discharge was obtained."

Though this is a statute intended to act upen the distribution of insolvent estates, and not a statute of bankruptcy; whatever exemption it may give from suit to an executor or administrator of an insolvent estate, against the citizens of Alabama, a citizen of another state, being a creditor of the testator or intestate, cannot be acted upon by any proceedings under the statute, unless he shall have voluntarily made himself a party in them, so as to impair his constitutional and legal right to sue an executor or administrator in the circuit court of the United States. Let it then be certified to the circuit court of the United States for the southern district of Alabama, as the opinion of this court, *that the plea that the estate of the decedent is insolvent, is not sufficient in law to abate the plaintiffs' action. [*76

This cause came on to be heard, on the transcript of the record from the circuit court of the United States for the southern district of Alabama, and on the points and questions on which the judges of the said circuit court were opposed in opinion, and which were certified to this court for its opinion, agreeable to the act of congress in such case made and provided, and was argued by counsel: On consideration whereof, it is the opinion of this court, that "the plea that the estate of the said decedent is insolvent, is not sufficient in law to abate the plaintiffs' action." Whereupon, it is now here ordered and adjudged by this court, that it be so certified to the said circuit court accordingly.

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*William A. Carr, Appellant, *v.* Samuel H. Duval and others, [*77
Appellees.

Specific performance.

A decree for a specific performance of a contract to sell lands, refused, because a definite and certain contract was not made; and because the party who claimed the performance had failed to make it definite and certain on his part, by neglecting to communicate by the return of the mail conveying to him the proposition of the vendor, his acceptance of the terms offered. Eliason *v.* Henshaw, 4 Wheat. 225, cited, and the principles of the decision re-affirmed.

If it be doubtful, whether an agreement has been concluded, or is a mere negotiation, chancery will not decree a specific performance.

Appeal from the Court of Appeals for the Territory of Florida. The case is fully stated in the opinion of the court.

The cause was argued by *Coxe* and *Webster*, for the appellant ; and by *Jones* and *Crittenden*, for the appellees.

Catron, Justice, delivered the opinion of the court.—In October 1825, William Harris, of Montgomery, Alabama, made his will, devising to his two sons, William and Stephen, the tract of land in controversy, lying on Lake Jackson, in Florida. Stephen and William, at their father's death, were both minors ; and William soon after died, leaving two brothers and three sisters, who are his heirs ; and two of whom were infants when this bill was filed, and two of them married women. The land was unimproved and undivided. In the fall of 1835, William A. Carr, the complainant desired to purchase the land, and applied to Stephen W. Harris for the purpose, by letter ; he, Carr, residing in Georgia. The letter of Carr, opening the correspondence, is not in the record, but the answer to it is sufficiently explanatory. The answer is dated August 17th, 1835 ; in which Stephen W. Harris says, his father left the land to his young brother and himself, that his brother had died long since, and he had just come of age, and was entitled to half the land, which could be divided at any time ; "and my half," says he, "is for sale, but it has first to be divided ; my price for that is ten dollars per acre." "The remaining half is owned by the brother and sisters of said brother, and I believe they are willing to sell, and their price, I expect, is ten dollars. Before any part of the land, short of the whole tract, could be sold, it would first have to be divided ; the whole could be sold so, and our price is ten dollars."

The next letter from Stephen W. Harris to complainant, is dated December 15th, 1835, acknowledging the receipt of one, the day before, from com-
*78] plainant, requesting to be informed of the quantity of *the land. The answer stated it to be 2131¼ acres ; and proposed to take Carr's offer for it, with interest on the last note, having two years to run. On January 2d, 1836, Harris acknowledged the receipt of another letter from Carr, dated the 25th December, preceding. "I have," says he, "come to the determination to sell you the land, on the terms you mentioned :" and then asks to be informed when and where they shall meet to make the necessary arrangements. The letter of Carr of the 25th December, referred to, offers to exchange some lands of his in Georgia (which, he says, he had previously described), rated by him at $20,000, for the Florida lands, he giving $3000 difference ; or, he would make the same offer he had previously done. What this offer was, appears by Harris's letter of the 16th January 1836 ; and as this letter is the conclusion of the correspondence, so far as Harris was concerned, and is the principal evidence relied on to establish the agreement, it becomes necessary, for the purposes of its proper understanding, and to ascertain the sense in which the parties understood it, to set it forth, together with the answers to it, of the 3d and 19th of February.

"Mr. William A. Carr. Montgomery, January 16th, 1836.

"Sir :—Yours of the 12th instant is just received, and in reply have only to remark, that I will accede to your first proposition, as stated in my last letter : that is, one-third cash, the balance in two equal instalments, with a mortgage on the land—the last two payments to be made in cash—and as all the heirs live in the neighborhood of this place, it will be the only place

where we can conveniently meet to close the bargain. I wish to know your decision *per* return mail, as I have three other offers for the land, and can sell it immediately, if you do not wish to take it."

"MR. STEPHEN W. HARRIS. Athens, February 3d, 1836.

"Dear Sir:—Yours of the 16th January I received upon my return from Augusta, and according to your request, hasten to answer it, and for answer say, that I am still as desirous as ever of taking the land, and have considered myself bound to you for the money, and you as equally bound to me for the title to the land; but as there was, in my mind, at least, some doubt to which of my propositions you had acceded, I thought it best to write again, and be definitely informed on that subject, for the reasons stated in my last. It will be out of my power to go to Montgomery, as my family is sick; my wife, who has been confined, took cold, by leaving her room too soon after her confinement, and upon my arrival at home, found her quite sick; although better, is still too unwell for me to leave home just at this time; and our court commencing here next week, I shall have to remain until that is over; then I am *compelled, if my wife's health permits, to go immediately to Florida, as you have, no doubt, heard [*79 of the distressing situation of the country there, in consequence of the Indian hostilities; so you will have to get all the parties interested in the land together, which I suppose you can easily do, as you say they all live in the neighborhood, and have the titles perfected to me; and in doing so, the titles must be conjointly by all the heirs interested in the land, made and executed; and those who have families, their wives must assign over and relinquish their right of dower to the same; and when it is, that is, the title, properly executed, one of you can carry it or send it to me, or some agent at Tallahassee, and receive the first payment for the same, and my notes for the balance of the purchase-money, and the mortgage on the land, which suits me better than personal security; and in order that the business may be more properly executed, yourself and Judge Field had better be in Florida, for I shall require the boundaries of the land to be defined, so that I may know where the land lies, and when I am on my own land; as well as avoid getting on any of my neighbors' land. Will you be pleased to state what are the offers made you, and by whom, as you say in your last letter, you "have three other offers for the land," be good enough to state explicitly by whom they are made, what is the amount of each offer, and the payments. I ask this, as it cannot now make any difference to you, as I consider this matter closed between us; in other words, I consider the trade as made between us, which puts the land entirely out of the market. Any further communication between us will have to be sent to me to Tallahassee, Florida, as the mail communication between this and Montgomery, is so uncertain, that an answer would not reach here, until I should be gone to Florida. If you would prefer to remain at home, until you know certainly when I would be in Florida, I will write, on my arrival there, to you, and inform you when to meet me or go on there; the latter plan will, perhaps, be more desirable to you. I must here inquire, if any part of this tract has been taken off or sold to any person, as I have understood by some, it contained 2300, and by others, 2400 acres; but you always told me in our cor-